



CHAPTER lxxxvi.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Ashton - under - Lyne
Blackburn Carlisle Leigh-on-Sea Newcastle-upon-Tyne
and Sheffield (two). [3rd August 1910.] A.D. 1910.

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 9) Act 1910. Short title.

A.D. 1910.

SCHEDULE.

BOROUGH OF ASHTON-UNDER-LYNE.

*Ashton-
under-Lyne
Order.*

*Provisional Order for altering the Ashton-under-Lyne
Improvement Act 1877 and the Local Government Board's
Provisional Orders Confirmation (No. 6) Act 1882.*

To the Mayor Aldermen and Burgesses of the Borough of Ashton-
under-Lyne ;

And to all others whom it may concern.

WHEREAS the Borough of Ashton-under-Lyne (herein-after referred to
as "the Borough") is an Urban District of which the Mayor Aldermen
and Burgesses acting by the council (herein-after referred to as "the
Corporation") are the Urban District Council and the local authority
within the meaning of the Public Health Act 1875 ;

40 & 41 Vict.
c. clxxi.

And whereas the unrepealed provisions of the Ashton-under-Lyne
Improvement Act 1877 (herein-after referred to as "the Local Act")
as altered by a Provisional Order of the Local Government Board
dated the Sixteenth day of May One thousand eight hundred and
eighty-two (herein-after referred to as "the Order") which was duly
confirmed by the Local Government Board's Provisional Orders Con-
firmation (No. 6) Act 1882 (herein-after referred to as "the Confirming
Act") and by certain other Local Acts and Provisional Orders duly
confirmed by Parliament which do not affect the subject-matter of this
Order are in force in the Borough ;

45 & 46 Vict.
c. lxiii.

And whereas by Section 28 of the Local Act the Corporation were
empowered to borrow the sums therein specified for the purposes
therein mentioned ;

And whereas by Article III. of the Order Section 28 of the Local
Act was altered and amended so as to enable the Corporation in
addition to the sums specified in that Section to borrow and re-borrow
from time to time under and subject to the provisions of the Local
Act as thereby amended on the security of their borough fund and
all or any rates or rate leviable by them in the Borough for the
purpose of defraying the "new street expenses" mentioned in Section 13
of the Local Act any sum or sums not exceeding in the whole the
sum of thirty thousand pounds but it was provided that of the said

sum of thirty thousand pounds no more than twenty thousand pounds might be borrowed without the sanction of the Local Government Board ;

A.D. 1910.

*Ashton-
under-Lyne
Order.*

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act as altered as aforesaid in the manner herein-after set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Act shall be altered as follows that is to say :—

38 & 39 Vict.
c. 55.

Art. I. The Local Act as altered by the Order and the Confirming Act so far as it relates to the Order shall have effect as if in Article III. of the Order the words "forty thousand pounds" were substituted for the words "thirty thousand pounds" wherever they occur and as if in the proviso to that Article the words "thirty thousand pounds" were substituted for the words "twenty thousand pounds."

Increase of
borrowing
powers for
purposes of
street im-
provements
&c.

Art. II. The Order may be cited as the Ashton-under-Lyne Order 1882 and this Order may be cited as the Ashton-under-Lyne Order 1910 and the Order and this Order may be cited together as the Ashton-under-Lyne Orders 1882 and 1910.

Short titles.

Given under the Seal of Office of the Local Government Board
this Sixth day of June One thousand nine hundred and ten.

(I.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

BOROUGH OF BLACKBURN.

*Provisional Order for partially repealing and altering the
Blackburn Corporation Act 1901.*

*Blackburn
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Blackburn ;—

And to all others whom it may concern.

WHEREAS the Borough of Blackburn (herein-after referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority ;

[Ch. lxxxvi.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 9) Act, 1910. 1 GEO. 5.]

A.D. 1910.

Blackburn
Order.

1 EDW. 7.
c. ccxxiii.

And whereas the unrepealed provisions of the Blackburn Corporation Act 1901 (herein-after referred to as "the Local Act") are in force in the Borough;

And whereas by Section 66 of the Local Act the Corporation were empowered subject to and in accordance with the provisions of that Act to extend the Town Hall (herein-after referred to as "the Town Hall") by erecting an assembly hall together with a lecture hall and other rooms offices buildings and conveniences (herein-after collectively referred to as "the Assembly Hall") and cold air stores thereunder upon the land specified in the said Section and herein-after referred to as "the original site" and by Section 67 of the Local Act the Corporation were further empowered to make alterations and improvements to the Town Hall as therein mentioned but the erection of the Assembly Hall on the original site has now been abandoned;

And whereas provision was made by Sections 68 69 70 and 71 of the Local Act with regard to the use of the Assembly Hall when erected the furnishing fitting up equipment and regulation of the same the terms of admission thereto the provision of an organ and an organist therefor and for the charging of the expenses thereof to the borough fund and the crediting of that fund with the moneys received by the Corporation in connection with the admission of persons thereto;

And whereas by Section 73 of the Local Act it was enacted that the buildings by that Part of the Act authorised which included the Assembly Hall should be completed within ten years from the passing of the Local Act;

And whereas by Section 74 of the Local Act the Corporation were further empowered subject to and in accordance with the provisions of that Act to erect a sessions house police courts police station and fire brigade station and firemen's houses or dwellings and buildings and offices convenient to be used therewith upon the land therein specified;

And whereas by Section 81 of the Local Act the Corporation were empowered to purchase the lands therein referred to which included the lands specified in Section 74 of the Local Act;

And whereas by Section 133 of the Local Act the Corporation were authorised to borrow on the security of the borough fund and borough rate for alterations to the Town Hall the Assembly Hall and for furnishing the same such moneys as they might from time to time think requisite not exceeding the sum of eighty thousand pounds and with the consent of the Local Government Board such further sums as they might require and the said sum of eighty thousand pounds or such part thereof as might be borrowed was required to be repaid

within the period of forty years from the date of the borrowing and any further moneys borrowed with the consent of the Local Government Board were required to be repaid within such period not exceeding sixty years as the Board might allow ;

A.D. 1910.

*Blackburn
Order.*

And whereas the Corporation have purchased certain of the lands specified in Section 74 of the Local Act and propose to erect the Assembly Hall and certain other buildings upon the parts of those lands which are described in the Schedule of this Order (herein-after referred to as "the scheduled lands") instead of upon the original site and to borrow money for those purposes ;

And whereas the Corporation have applied to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Local Act in the manner herein-after set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be partially repealed and altered so that the following provisions shall have effect that is to say :—

38 & 39 Vict.
c. 55.

Art. I.—(1) The Corporation shall be empowered to erect upon the scheduled lands—

Authorising
erection of
Assembly
Hall &c. on
scheduled
lands.

(a) one or more assembly halls together with a lecture hall and a heating station ; and

(b) offices for the transaction of their business and that of their officers and servants ;

and from time to time to maintain and improve enlarge alter or adapt the buildings so erected and to provide and maintain all necessary accommodation conveniences apparatus fittings and furniture in connection with the said buildings.

(2) The provisions of Section 73 of the Local Act as amended by Article III. of this Order shall apply to any buildings which may be erected in pursuance of subdivision (1) of this Article and the provisions of Sections 68 69 70 and 71 of the Local Act shall apply and have effect in relation to any buildings which may be erected by the Corporation in pursuance of paragraph (a) of that subdivision as if in each case those Sections were herein re-enacted and in terms made applicable thereto.

Application
of provisions
of Local Act
to Assembly
Hall &c.

• (3) The erection improvement enlargement alteration furnishing and equipment of the buildings mentioned in subdivision (1) of this Article shall be a purpose of the Local Act for which the Corporation may under paragraph (a) of subsection (1) of Section 133 of the Local Act and the last paragraph of that Section borrow eighty thousand

[Ch. lxxxvi.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 9) Act, 1910. 1 GEO. 5.]

A.D. 1910.

*Blackburn
Order.*

Use of heat-
ing station
for other
buildings.

pounds and with the consent of the Local Government Board such further sums of money as they may require.

Art. II. The heating station referred to in Article I. of this Order when erected by the Corporation in pursuance of subdivision (1) of that Article may be used by the Corporation for the purpose of heating any buildings which may have been or may be erected by the Corporation upon any lands acquired by them under the provisions of Section 74 of the Local Act.

Alteration of
Local Act.

Art. III.—(1) Section 66 of the Local Act shall be repealed.

(2) Section 73 of the Local Act shall have effect as if for the words "ten years" in that section the words "twenty years" were substituted.

Short title.

Art. IV. This Order may be cited as the Blackburn Order 1910.

The SCHEDULE above referred to.

A plot of land containing by admeasurement two thousand four hundred and ninety-five square yards or thereabouts bounded on the north by the site of the Session House and Police Courts on the south by Blakey Moor on the east by Northgate and on the west by the playground of the higher elementary school.

A plot of land containing by admeasurement seven hundred and thirty-two square yards or thereabouts bounded on the north by Duke Street Mill on the south by Blakey Moor on the east by Duke Street and on the west by a back road leading out of Blakey Moor.

Given under the Seal of Office of the Local Government Board
this Fourth day of June One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

CITY OF CARLISLE.

*Carlisle
Order.*

*Provisional Order for altering the Carlisle Corporation (Water)
Act 1898 and the Carlisle Corporation Act 1906.*

To the Mayor Aldermen and Citizens of the City of Carlisle;—

And to all others whom it may concern.

WHEREAS the City of Carlisle (herein-after referred to as "the City") is an Urban District of which the Mayor Aldermen and Citizens acting by the council (herein-after referred to as "the Corporation")

[10 EDW. 7 & *Local Government Board's* [Ch. lxxxvi.]
1 GEO. 5.] *Provisional Orders Confirmation (No. 9) Act, 1910.*

are the Urban District Council and the local authority within the meaning of the Public Health Act 1875; A.D. 1910.

And whereas the unrepealed provisions of the Carlisle Corporation (Water) Act 1898 and the Carlisle Corporation Act 1906 (herein-after together referred to as "the Local Acts") are in force in the City; *Carlisle Order.* 61 & 62 Vict. c. ccxxv. 6 Edw. 7.

And whereas the Corporation were empowered by the Local Acts to construct reservoirs and works and acquire lands or easements and rights therein for the purposes of their water undertaking and to borrow money for those purposes;

And whereas the Corporation having exercised the powers aforesaid have applied to the Local Government Board for the issue of a Provisional Order to repeal alter or amend the Local Acts so as to enable the Corporation to borrow with the sanction of the Local Government Board further moneys to defray the cost of waterworks constructed under the Local Acts and such additional sums as may from time to time be required for the purposes of their water undertaking:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall have effect that is to say:— 38 & 39 Vict. c. 55.

Art. I. The Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the revenue of their water undertaking and of the district fund and general district rate of the City or upon either of those securities such further moneys as may from time to time be required for the purposes of their water undertaking. Additional borrowing powers.

Art. II. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order. Local Loans Act and certain provisions of Public Health Act made applicable.

Art. III. The moneys borrowed under Article I. of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the moneys to be repaid be the prescribed period for the purposes of the Local Loans Act 1875 and of this Order. Period for repayment of borrowed moneys.

Art. IV.—(1) The Corporation shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal Mode of repayment.

A.D. 1910. or by equal annual instalments of principal and interest combined or
Carlisle by means of a sinking fund or partly by one of those methods and
Order. partly by another or the others of them.

Formation
maintenance
and applica-
tion of sink-
ing fund.

(2) Subject to the provisions of Article V. of this Order if the Corporation determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation and the Corporation shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation:

A.D. 1910.

Carlisle
Order.

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

Art. V.—(1) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

Increase
reduction or
discontinu-
ance of pay-
ments to
sinking fund.

(2) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

A.D. 1910.

*Carlisle
Order.*

Surplus of
sinking fund.

Power to
re-borrow.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

Art. VI.—(1) The Corporation shall have power—

(A) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) by instalments or annual payments; or

(B) by means of a sinking fund; or

(C) out of moneys derived from the sale of land; or

(D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Application
of borrowed
moneys.

Art. VII. All moneys from time to time borrowed under this Order shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Corporation with the approval of the Local Government Board determine.

Receiver.

Art. VIII.—(1) Subject to the provisions of this Article any mortgagee of the Corporation in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

A.D. 1910.

*Carlisle
Order.*

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Art. IX.—(1) The town clerk shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the town clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Return as to
provision for
repayment
of debt.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such

[Ch. lxxxvi.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 9) Act, 1910. 1 GEO. 5.]

A.D. 1910. order shall be enforceable by writ of mandamus to be obtained by the
Carlisle Board out of the High Court.
Order.

Inquiries and
 expenses.

Art. X. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of the Local Acts or of this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

Short title.

Art. XI. This Order may be cited as the Carlisle Order 1910.

Given under the Seal of Office of the Local Government Board
 this Seventh day of June One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

URBAN DISTRICT OF LEIGH-ON-SEA.

Leigh-on-Sea
Order.

Provisional Order for partially repealing and altering the
Leigh-on-Sea Urban District Council Act 1899.

To the Urban District Council of Leigh-on-Sea;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Leigh-on-Sea (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Leigh-on-Sea (herein-after referred to as "the District");

62 & 63 Vict.
 c. ccxvii.

And whereas the provisions of the Leigh-on-Sea Urban District Council Act 1899 (which Act is herein-after referred to as "the Local Act") are in force in the District;

And whereas by Section 36 of the Local Act the Council were empowered to borrow for the purposes of their gas undertaking and for the erection of public offices and buildings and the acquisition of lands therefor and for certain other purposes mentioned in the said section the sums therein specified or referred to;

And whereas the Council have acquired lands as a site for the erection of public offices and buildings and have erected thereon certain buildings (herein-after referred to as "the existing buildings") and the cost of the acquisition of the said lands and the erection of the existing buildings has been defrayed out of moneys borrowed under Section 36 of the Local Act;

And whereas the Council propose to erect a fire-station upon the said lands and a doubt has arisen whether the existing buildings and the proposed fire station are public offices and buildings within the meaning of the said Section 36 ;

A.D. 1910.
Leigh-on-Sea
Order.

And whereas it was provided by Section 58 of the Local Act that if the works authorised by the Local Act were not completed within the period of ten years from the passing of the Local Act then on the expiration of that period the powers by the Local Act granted to the Council for executing the same or in relation thereto should cease except as to so much thereof as might then be completed ;

And whereas it is expedient that the Council should be empowered to borrow additional moneys for the purposes of the Local Act ;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to repeal alter or amend the Local Act in the manner herein-after set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be partially repealed and altered so that the following provisions shall take effect that is to say :—

38 & 39 Vict.
c. 55.

Art. I. The expression “public offices and buildings” in paragraph (g) of Section 36 of the Local Act shall be deemed to have included the existing buildings and shall include a fire-station and the erection of public offices and buildings as so defined shall be a purpose of the Local Act within the meaning of Article II. of this Order.

Defining the
expression
“public
offices and
buildings” in
Section 36 (g)
of Local Act.

Art. II. The Council may with the sanction of the Local Government Board and subject to the provisions of this Order borrow for all or any of the purposes of the Local Act as altered by this Order—

Additional
borrowing
powers for
purposes of
Local Act.

(A) upon the security of the revenue of their gas undertaking and of the district fund and general district rate of the District or upon either of those securities so far as such purposes relate to that undertaking ; and

(B) upon the security of the district fund and general district rate of the District for any other of those purposes

such sum or sums as may be necessary in addition to the sums which they are already authorised by the Local Act to borrow for those purposes.

Art. III. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Council and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

Local Loans
Act and cer-
tain provi-
sions of Pub-
lic Health
Act made
applicable.

A.D. 1910. Leigh-on-Sea Order.
 Period for repayment of money borrowed.
 Art. IV. The moneys borrowed under Article II. of this Order shall be repaid within such period as the Council with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the moneys to be repaid be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Mode of repayment.
 Art. V.—(1) The Council shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Formation maintenance and application of sinking fund.
 (2) Subject to the provisions of Article VI. of this Order if the Council determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

(A) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(B) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Council and the Council shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

A.D. 1910.

*Leigh-on-Sea
Order.*

(5) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

Art. VI.—(1) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

Increase
reduction or
discontinu-
ance of pay-
ments to
sinking fund.

(2) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund

A.D. 1910. either temporarily or permanently to such an extent as the Board
Leigh-on-Sea approve.
Order.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

Surplus of sinking fund. (5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

Power to re-borrow.

Art. VII.—(1) The Council shall have power—

(A) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) by instalments or annual payments; or

(B) by means of a sinking fund; or

(C) out of moneys derived from the sale of land; or

(D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Application of borrowed moneys.

Art. VIII. All moneys from time to time borrowed under this Order shall be applied by the Council only for the purposes for which

the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Council with the approval of the Local Government Board determine.

A.D. 1910.

Leigh-on-Sea
Order.

Art. IX.—(1) Subject to the provisions of this Article any mortgagee of the Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

Receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Art. X.—(1) The clerk to the Council shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Return as to
provision for
repayment of
debt.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or

[Ch. lxxxvi.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 9) Act, 1910. 1 GEO. 5.]

A.D. 1910: annual payment required to be paid or to appropriate any sum required
Leigh-on-Sea to be appropriated or to set apart any sum required for any sinking
Order. fund (whether the instalment or annual payment or sum is required
by this Order or by the Board in virtue thereof to be paid appro-
priated or set apart) or have applied any portion of any sinking fund
to any purpose other than an authorised purpose the Board may by
order direct that the sum in their order mentioned not exceeding
double the amount in respect of which default has been made shall
be paid or applied as is mentioned in the said order and any such
order shall be enforceable by writ of mandamus to be obtained by the
Board out of the High Court.

Inquiries and Art. XI. Where the Local Government Board cause any local
expenses. inquiry to be held with reference to any of the purposes of this Order
the costs incurred by the Board in relation to that inquiry (including
such reasonable sum not exceeding three guineas a day as the Board
may determine for the services of any inspector or officer of the Board
engaged in the inquiry) shall be paid by the Council and the Board may
certify the amount of the costs so incurred and any sum so certified
and directed by the Board to be paid by the Council shall be a debt
due to the Crown from the Council.

Repeal of
Section 58 of
Local Act.

Art. XII. Section 58 of the Local Act shall be repealed.

Short title.

Art. XIII. This Order may be cited as the Leigh-on-Sea Order
1910.

Given under the Seal of Office of the Local Government Board
this Eighth day of June One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

CITY OF NEWCASTLE-UPON-TYNE.

Newcastle-
upon-Tyne
Order.

Provisional Order for altering the Newcastle-upon-Tyne
Corporation Act 1904.

To the Mayor Aldermen and Citizens of the City and County of
Newcastle-upon-Tyne;—

And to all others whom it may concern.

WHEREAS the City of Newcastle-upon-Tyne (herein-after referred to
as "the City") is an Urban Sanitary District of which the Mayor
Aldermen and Citizens acting by the Council (herein-after referred to
as "the Corporation") are the Urban Sanitary Authority and the
unrepealed provisions of the Newcastle-upon-Tyne Corporation Act 1904
(herein-after referred to as "the Local Act") are in force in the City;

4 Edw. 7.
c. ccxx.

And whereas by Section 24 of the Local Act (which section is included in Part IV. of the Local Act) the Corporation were empowered subject to the provisions of the Local Act to make and maintain certain works (in the Local Act and herein-after referred to as "the Ouseburn Valley Works") together with any incidental works connected therewith or convenient therefor and the said works include the following works namely:—

A.D. 1910.

*Newcastle-
upon-Tyne
Order.*

Work No. 1.—A new street across the valley of the Ouseburn commencing by a junction with Dinsdale Road near Starbeck Avenue and terminating by a junction with Newington Road near Stratford Grove West (herein-after referred to as "Work No. 1");

Work No. 2.—A new street across the valley of the Ouseburn commencing by a junction with Portland Road near Clarence Crescent and terminating by a junction with Newington Road near Stratford Grove West (herein-after referred to as "Work No. 2");

Work No. 4.—A culvert for the enclosing straightening and diversion of the stream called the Ouseburn commencing in the said stream at a point 10 chains or thereabouts south-west of the bridge crossing the Ouseburn at Jesmond Vale and terminating in the said stream at a point one chain or thereabouts north of the viaduct carrying the North Eastern Railway over the Ouseburn Valley (herein-after referred to as "the culvert");

And whereas by Section 26 of the Local Act (which section is included in Part IV. of the Local Act) the Corporation were empowered subject to the provisions of the Local Act when they had constructed the culvert and in connexion with the construction of the new streets authorised by Part IV. of the Local Act to fill up to the level of the said new streets so much of the valley of the Ouseburn as is in the said Section 26 specified;

And whereas by Section 27 of the Local Act the Corporation were empowered in constructing the works authorised by Part IV. of the Local Act to deviate from the lines thereof as shown upon the deposited plans referred to in the Local Act to the extent of the limits of deviation and from the levels thereof as shown upon the deposited sections referred to in the Local Act to such extent as they might think proper but it was provided that no such deviation should be made so as to cause the gradient of the said new streets or any of them to be steeper than one in twenty;

And whereas by Section 94 of the Local Act the Corporation were empowered to borrow on the security of the improvement rate of the City such moneys as they might think requisite not exceeding the

A.D. 1910. sum of One hundred and seventy-four thousand pounds for and in
*Newcastle-
upon-Tyne
Order.* relation to the street widenings authorised by Part III. of the Local
Act and the Ouseburn Valley works and the period within which any
moneys so borrowed are to be repaid is prescribed by Section 97 of the
Local Act;

And whereas the Corporation in the exercise of their powers under
the Local Act have acquired or are acquiring the lands required for
the purposes of the works authorised by Part IV. of the Local Act and
a portion of the culvert has already been constructed;

And whereas the construction of Work No. 1 and Work No. 2
has not yet been commenced and the Local Government Board are
satisfied after a local inquiry by one of their inspectors that it will be
impracticable to construct those works efficiently within the limits of
deviation shown upon the deposited plans and that the points of com-
mencement and termination of the limits of deviation and the levels of
Work No. 1 and Work No. 2 cannot be prescribed until further
progress has been made with the work of filling up that part of the
valley of the Ouseburn across which the said works are to be
constructed;

And whereas the Corporation have made application to the Local
Government Board for the issue of a Provisional Order to alter or
amend the Local Act in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of
38 & 39 Vict. the powers given to Us by Section 303 of the Public Health Act
c. 55. 1875 and by any other Statutes in that behalf do hereby order that
from and after the date of the Act of Parliament confirming this Order
the Local Act shall be altered so that the following provisions shall
take effect namely:—

Variation of
works. Art. I. Notwithstanding anything contained in the Local Act but
subject to the proviso contained in Section 27 of the Local Act the
points of commencement and termination the limits of deviation and
the levels which shall apply to Work No. 1 and to Work No. 2 shall
be such as the Corporation with the sanction of the Local Govern-
ment Board after local inquiry may determine and as shall be shown
on plans and sections sealed by the Local Government Board:

Provided that the said works shall be constructed only on lands
belonging to the Corporation and acquired or authorised to be used
in pursuance of the provisions of the Local Act for the purposes of
Part IV. of the Local Act.

Omission of
restriction. Art. II. Section 26 of the Local Act shall apply and have effect
as if the words "when they have constructed the culvert authorised by
this Part of this Act and" were omitted from the section.

Additional
borrowing
powers. Art. III. Section 94 of the Local Act shall have effect as if to the
paragraph lettered (E) of that section there were added the words "and

“ with the sanction of the Local Government Board such further sums A.D. 1910.
“ not exceeding in the whole the sum of Sixty-five thousand pounds
“ as may be necessary.” *Newcastle-upon-Tyne Order.*

Art. IV. Section 97 of the Local Act shall apply and have effect *Period of loan.*
as if there were inserted in the section immediately after the words
“ For the purposes in subsections (E) and (F) ” the words “ other than
“ moneys borrowed with the sanction of the Local Government Board ”
and after the words “ sixty years ” the words “ and in the case of
“ moneys borrowed with the sanction of the Local Government Board
“ such period or periods as that Board may sanction.”

Art. V. This Order may be cited as the Newcastle-upon-Tyne Order *Short title.*
1910.

Given under the Seal of Office of the Local Government Board
this Seventh day of June One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

CITY OF SHEFFIELD.

*Provisional Order to enable the Urban Sanitary Authority
for the City of Sheffield to put in force the Compulsory
Clauses of the Lands Clauses Acts.* *Sheffield Order (2).*

To the Lord Mayor Aldermen and Citizens of the City of
Sheffield ;—

And to all others whom it may concern.

WHEREAS the Lord Mayor Aldermen and Citizens of the City of
Sheffield acting by the Council as the Urban Sanitary Authority for that
City (herein-after referred to as “ the Corporation ”) require to purchase
and take the lands described in the schedule hereto for the following
purposes that is to say :—

- (1) The lands described in Part I. of the said schedule for the
purpose of widening opening enlarging or otherwise
improving the street called Penistone Road :
- (2) The lands described in Part II. of the said schedule for
the purpose of widening opening enlarging or otherwise
improving the street called Chesterfield Road :
- (3) The lands described in Part III. of the said schedule for
the purpose of widening opening enlarging or otherwise
improving the street called Commonsides :

A.D. 1910.

Sheffield
Order
 (2).

- (4) The lands described in Part IV. of the said schedule for the purpose of widening opening enlarging or otherwise improving the street called Chesterfield Road:
- (5) The lands described in Part V. of the said schedule for the purpose of widening opening enlarging or otherwise improving the street called Woodside Lane:
- (6) The lands described in Part VI. of the said schedule for the purpose of widening opening enlarging or otherwise improving the street called Main Road:
- (7) The lands described in Part VII. of the said schedule for the purpose of widening opening enlarging or otherwise improving Furnival Street and Sidney Street:
- (8) The lands described in Part VIII. of the said schedule for the purpose of making a new street in continuation of the street called Westwood Road to connect that street with the street called Dead Lane:
- (9) The lands described in Part IX. of the said schedule for the purpose of widening opening enlarging or otherwise improving the street called Whitham Road:

38 & 39 Vict.
 c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

Compulsory
 powers of
 purchase.

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them Provided that the prescribed period for the compulsory purchase of the lands described in Part I. in the schedule hereto shall for the purposes of section 123 of the Lands Clauses Consolidation Act 1845 be one year from the date of the Act of Parliament confirming this Order.

Short title.

Art. II. This Order may be cited as the Sheffield Order (No. 2) 1910.

The SCHEDULE above referred to.

A.D. 1910.
Sheffield
Order
(2).

City and County Borough of SHEFFIELD.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
Sheet No. 2.	PART I.			
	TOWNSHIP OF ECCLESALL.			
	PENISTONE ROAD IMPROVEMENT.			
	(IMPROVEMENT No. 2.)			
	1 Forecourt boundary wall and bed of the River Loxley.	James Swift -	- - -	James Swift.
	2 Forecourt boundary walls river bank and bed of the River Loxley.	John Henry Trickett.	- - -	John Henry Trickett.
	3 House shop yard stabling and out-buildings.	George Hill -	- - -	George Hill.
	4 House yard garden and outbuildings.	Ditto -	- - -	William Buckle.
	5 Public house yard stabling and out-buildings (the Red Lion).	William Greaves and Company Limited.	- - -	Willie Smith.
	6 Archway rooms over and stairway.	Ditto -	- - -	Ditto.
	7 House shop yard and outbuildings.	Ditto -	The Executors of the Will of John Arnold deceased namely Harriet Arnold Arthur Mastin Philip Kenyon Wake. Philip Kenyon Wake.	Lucy Kitchen.
	8 Ditto -	Ditto -	Ditto -	Unoccupied.
	9 Ditto -	Ditto -	Ditto -	Thomas Burgin.
10	House shop and yard.	The Trustees of the Will of Frederick Joseph Hall deceased namely Sarah Elizabeth Hall John Denison.	The Corporation	Unoccupied.
11	Dwelling-house -	Ditto -	Ditto -	Jemima Brinnen.
12	Ditto -	Ditto -	Ditto -	John Henry Travis.
13	Ditto -	Ditto -	Ditto -	James Wilson.

[Ch. lxxxvi.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 9) Act, 1910. 1 GEO. 5.]

A.D. 1910.

*Sheffield
Order
(2).*

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
Sheet No. 2. 14	Passage common yard and con- veniences.	The Trustees of the Will of Frederick Joseph Hall deceased (as before).	The Corporation	Jemima Brinnen John Henry Travis James Wilson Alice Staley Mary Alice Sheward Oscar Gent.
15	Dwelling-house -	Ditto - -	Ditto - -	Alice Staley.
16	Ditto - -	Ditto - -	Ditto - -	Mary Alice Sheward.
17	Ditto - -	Ditto - -	Ditto - -	Oscar Gent.
18	Dwelling - house yard and out- buildings.	Ditto - -	Ditto - -	Eleanor Wilkin- son.
PENISTONE ROAD IMPROVEMENT. (IMPROVEMENT No. 3.)				
Sheet No. 2. 1	Forecourts bound- ary walls and en- trances to works.	Easterbrook All- card and Com- pany Limited.	- - -	Easterbrook All- card and Com- pany Limited.
2	Forecourt bound- ary wall and en- trance to gate- way.	Duncan Gilmour -	- - -	The Trustees of the Glossop Road Baptist Church Scott Black.
PART II. TOWNSHIP OF ECCLESALL. CHESTERFIELD ROAD IMPROVEMENT.				
Sheet No. 3. 1	Garden and bound- ary wall.	The Executors and Devises in trust of Thomas Turner deceased namely Annie Worsnop Ben- jamin Tyzack Turner David Hunton Porrett William Cleverley Veall Benjamin Tyzack Turner (tenant for life).	- - -	Charles Lep- worth.
2	Garden boundary wall and entrance gate.	Ditto - -	- - -	John Coombs.
3	Garden and bound- ary wall.	Ditto - -	John Henry Davidson.	John Henry Davidson.
4	Ditto - -	The Trustees of the Will of John Hall deceased namely John Dixon Arthur Dyson.	- - -	Unoccupied.
5	Public footpath and steps.	The Corporation.	-	-

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
Sheet No. 3.				
6	Rough land and plantation.	Joseph Brown	- - -	Moss' Empires Limited.
7	Plantation - -	The Executors and Trustees of Charles S. Furniss deceased namely James Furniss Lewis Frances Furniss Ethel Furniss Sarah Turner.	- - -	The Hippodrome Sheffield Limited.
8	Garden boundary wall entrance gate and steps.	Harriet Bunting	- - -	Harriet Bunting.
9	Rough land and boundary wall.	Walter Holmes	- - -	In hand.
10	Rough land plantation boundary wall and gate.	Elizabeth Bullas	- - -	Ditto.
11	Rough land plantation and boundary wall.	Richard Howroyd	- - -	Ditto.
12	Garden and boundary wall.	Walter Holmes	- - -	Richard Scattergood.
13	Garden - -	Frederick John Horner.	- - -	J. Lee.
14	Rough land - -	Charles James Cowlishaw.	- - -	In hand.
15	Ground and fence	The Trustees of the Will of John Firth deceased namely Charles Harding Firth Lewis John Firth Frank Harding Chambers.	- - -	Ditto.
16	Ground and fence	John Gregory and Son Limited.	- - -	Ditto.
17	Ground fence and wall.	The Executors and Devises in Trust of Thomas Turner deceased (as before).	- - -	Ditto.

A.D. 1910.
Sheffield Order
(2).

PART III.

TOWNSHIP OF ECCLESALL.

COMMONSIDE IMPROVEMENT.

Sheet No. 4.				
1	Garden boundary walls gate and footpath.	The Trustees of William Greaves Roper deceased namely William Edward Roper Henry Barlow Sandford.	- - -	William Edward Roper.

[Ch. lxxxvi.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 9) Act, 1910. 1 GEO. 5.]

A.D. 1910.
Sheffield
Order
(2).

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
PART IV.				
CHESTERFIELD ROAD IMPROVEMENT.				
Sheet No. 4. 1	Yard and boundary wall.	Joe Wheldon	- - -	Joe Wheldon.
PART V.				
TOWNSHIP OF SHEFFIELD.				
WOODSIDE LANE IMPROVEMENT.				
Sheet No. 5. 1	Forecourt and wall and ground.	John Henry Petty	- - -	Thomas Henry Gamble.
2	Dwelling-house -	Ditto - -	- - -	Ditto.
3	Yard and conveni- ences.	Ditto - -	- - -	Thomas Henry Gamble Charles Shepherd.
4	Dwelling-house -	Ditto - -	- - -	Charles Shepherd.
5	Ditto - -	Ann Woodhouse -	- - -	Ann Woodhouse.
6	Yard and conveni- ences.	Ditto - -	- - -	Ditto.
PART VI.				
TOWNSHIP OF SHEFFIELD.				
MAIN ROAD IMPROVEMENT.				
Sheet No. 5. 1	Forecourt boundary wall and entrance gates.	William Stones Limited.	- - -	Mark Batty.
2	Ditto - -	Ditto - -	- - -	Robert Sudgate.
3	Open forecourt -	Ditto - -	- - -	William Briscoe.
4	Private Street (Wellington Place) gas and water pipes and sewers.	William Stones Limited the Cor- poration.	- - -	- - -
5	Open forecourt -	William Stones Limited.	- - -	Samuel Bingham junior.
PART VII.				
TOWNSHIP OF SHEFFIELD.				
FURNIVAL STREET AND SIDNEY STREET IMPROVEMENT.				
Sheet No. 6. 1	Dwelling-house -	Augustus Morton Roberts.	The Corporation	Unoccupied.
2	Passage yard and conveniences.	Ditto - -	Ditto.	- - -
3	Dwelling-house -	Ditto - -	Ditto - -	Robert Greaves.
4	Ditto - -	Ditto - -	Ditto - -	Unoccupied.

[10 EDW. 7 & Local Government Board's [Ch. lxxxvi.]
1 GEO. 5.] Provisional Orders Confirmation (No. 9) Act, 1910.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
Sheet No. 6. 5	Dwelling-house -	Augustus Morton Roberts.	The Corporation	Charles Henry Jessop.
6	Ditto - -	Ditto - -	Ditto - -	William Embley.
7	Ditto - -	Ditto - -	Ditto - -	Unoccupied.
8	Ditto - -	Ditto - -	Ditto - -	Ditto.
9	Ditto - -	Ditto - -	Ditto - -	William Henry Bray.
10	Ditto - -	Ditto - -	Ditto - -	Thomas Spencer.
11	Ditto - -	Ditto - -	Ditto - -	Unoccupied.
12	Ditto - -	Ditto - -	Ditto - -	John Charles Nuttall.
13	Ditto - -	Ditto - -	Ditto - -	Unoccupied.
14	Ditto - -	Ditto - -	Ditto - -	Mary Ellen Shields.
15	Ditto - -	Ditto - -	Ditto - -	Unoccupied.
16	Ditto - -	Ditto - -	Ditto - -	Ditto.
17	Passage yard and conveniences.	Ditto - -	Ditto.	—
18	Dwelling-house -	Ditto - -	Ditto - -	Unoccupied.
19	Ditto - -	Ditto - -	Ditto - -	Ditto.
20	Ditto - -	Ditto - -	Ditto - -	Ditto.
21	Ditto - -	Ditto - -	Ditto - -	John Wheelhouse.
22	Stables sheds and manure pit.	Ditto - -	Ditto - -	Ditto.

A.D. 1910.
Sheffield Order (2).

PART VIII.

TOWNSHIP OF ECCLESALL.

NEW STREET WESTWOOD ROAD TO DEAD LANE IMPROVEMENT.

Sheet No. 6. 1	Field and public footpath.	Elizabeth Ann Elliott The Corporation.	- - -	Robert Garner.
2	Ditto - -	Ditto - -	- - -	Ditto.

PART X.

TOWNSHIP OF ECCLESALL.

WHITHAM ROAD IMPROVEMENT.

Sheet No. 7. 1	Garden and boundary wall.	Ann Elizabeth Sené.	- - -	John Wainer.
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[Ch. lxxxvi.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 9) Act, 1910. 1 GEO. 5.]

A.D. 1910.

Sheffield
Order
 (2).

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
Sheet No. 7. 2	Garden boundary wall and entrance gate.	Ann Elizabeth Sené.	- - -	John Anthony Gatus.
3	Ditto - -	Ditto - -	- - -	John Holden.
4	Ditto - -	Ditto - -	- - -	Sarah Fisher.
5	Ditto - -	Ditto - -	- - -	Ellen Taylor.
6	Ditto - -	Ditto - -	- - -	Alfred Ernest Woodson.
7	Ditto - -	Ditto - -	- - -	Unoccupied.
8	Ditto - -	Ditto - -	- - -	Joseph Ford.

Given under the Seal of Office of the Local Government Board
 this Twenty-seventh day of May One thousand nine hundred
 and ten.

(L.S.)

JOHN BURNS President.

NOEL T. KERSHAW Assistant Secretary.

CITY OF SHEFFIELD.

Sheffield
Order
 (3).

*Provisional Order for partially repealing and altering certain
 Local Acts and a Confirming Act.*

To the Lord Mayor Aldermen and Citizens of the City of
 Sheffield :—

To the Urban District Council of Handsworth in the County of
 the West Riding of Yorkshire ;—

And to all others whom it may concern.

WHEREAS the City of Sheffield (herein-after referred to as “the
 City”) is an Urban Sanitary District of which the Lord Mayor Aldermen
 and Citizens acting by the Council (herein-after referred to as “the
 Corporation”) are the Urban Sanitary Authority;

And whereas the Urban District of Handsworth in the County
 of the West Riding of Yorkshire (herein-after referred to as “the
 District”) is an Urban District for which the Urban District Council
 of Handsworth (herein-after referred to as “the District Council”) are

the local authority within the meaning of the Public Health Act 1875 and the District is co-extensive with the Parish of Handsworth ;

And whereas there are in force in the City the unrepealed provisions of the Sheffield Corporation (Water) Act 1887 as altered by the Provisional Order herein-after mentioned the Sheffield Corporation Water Act 1896 and the Sheffield Corporation Act 1903 (each of which Acts is herein-after referred to as the Act of the year in which it was passed and all of which Acts are herein-after collectively referred to as "the Local Acts");

And whereas by the Act of 1887 the Corporation were empowered to supply water within certain limits and those limits included the Parish of Handsworth ;

And whereas by Section 48 of the Act of 1887 provision is made for the sale by the Corporation to any other sanitary authority of all pipes fittings and other apparatus for or connected with the distribution of water belonging to the Corporation which may be laid in the district of that sanitary authority ;

And whereas by a Provisional Order of the Local Government Board dated the Ninth day of May One thousand eight hundred and eighty-nine which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1889 (which Order and Act are herein-after referred to as "the Order" and "the Confirming Act" respectively) the limits within which the Corporation were authorised to supply water were altered so as to exclude the Parish of Handsworth ;

And whereas by Section 49 of the Act of 1896 as extended by Section 14 of the Act of 1903 the Corporation were empowered to borrow moneys for the purchase of land and the execution of works under the Act of 1896 and the extension of mains and other water-works purposes ;

And whereas the District Council in the exercise of their powers under the Public Health Act 1875 have established and carry on a water undertaking and have with the sanction of the Local Government Board borrowed moneys for the purposes of their water undertaking and in respect of the said moneys there is outstanding a debt of one thousand four hundred and twenty pounds twelve shillings and one penny ;

And whereas the Corporation and the District Council have agreed for the transfer to the Corporation of the water undertaking of the District Council and for the inclusion of the Parish of Handsworth in the water limits within which the Corporation may supply water ;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to partially

A.D. 1910.

*Sheffield
Order
(3).*

50 & 51 Vict.
c. clxxviii.
59 & 60 Vict.
c. cxc.
3 Edw. 7. c. cclv.

52 & 53 Vict.
c. lxi.

A.D. 1910. repeal alter or amend the Local Acts and the Confirming Act in the manner herein-after set forth:

Sheffield
Order
 (3).

38 & 39 Vict.
 c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts and the Confirming Act shall be partially repealed and altered so that the following provisions shall have effect that is to say:—

Extension of
 water limits.

Art. I.—(1) The limits within which the Corporation may supply water shall extend to and include the Parish of Handsworth and the rights powers privileges authorities duties and liabilities of the Corporation in respect of their water undertaking shall apply and have effect so far as may be necessary for the supply of water within the water limits as so extended.

(2) The provisions of Section 48 of the Act of 1887 shall not apply to the District or the District Council.

Sale to
 Corporation
 of water
 undertaking
 of District
 Council.

Art. II.—(1) The District Council may sell to the Corporation and the Corporation may purchase the water undertaking of the District Council and from and after the date upon which the water undertaking is transferred to the Corporation the Confirming Act so far as it relates to the Order shall be repealed.

(2) The water undertaking of the District Council when acquired by the Corporation shall be added to and form part of the water undertaking of the Corporation and subject to the provisions of this Order the provisions of the Local Acts and the rights powers privileges authorities duties and liabilities of the Corporation relating to the existing water undertaking of the Corporation shall apply to the extended water undertaking.

Borrowing
 power of
 Corporation.

(3) The purchase of the water undertaking of the District Council shall be deemed to be a purpose for which the Corporation may borrow money under the provisions of Section 49 of the Act of 1896 as extended as aforesaid.

Period of
 repayment.

(4) The moneys borrowed in pursuance of subdivision (3) of this Article shall be repaid within the period of thirty years from the date of borrowing and the Act of 1896 shall apply and have effect as if in the case of moneys borrowed under this Order that period were the period prescribed by Section 54 of the Act of 1896.

Application
 of sale
 proceeds.

(5) The moneys received by the District Council from the Corporation in respect of the purchase of the water undertaking of the District Council shall be applied in the repayment of the debt outstanding as aforesaid in respect of that water undertaking or for any

[10 EDW. 7 & *Local Government Board's* [Ch. lxxxvi.]
1 GEO. 5.] *Provisional Orders Confirmation (No. 9) Act, 1910.*

other purpose for which capital money may properly be applied and which may be approved by the Local Government Board: A.D. 1910.

Provided that the moneys so received shall not be applied to the payment of instalments appropriations or annual repayments or to payments into any sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

*Sheffield
Order
(3).*

Art. III. This Order may be cited as the Sheffield Order (No. 3) Short title.
1910.

Given under the Seal of Office of the Local Government Board
this Ninth day of June One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

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